

This guide provides a plain-language summary of **Republic Act No. 9653**, also known as the **Rent Control Act of 2009**. As of **2026**, these rules remain the standard for protecting tenants in low-to-mid-cost housing.



1. Who is Covered?

The law does **not** apply to all rentals. It specifically protects those paying lower rent amounts:

- **In Metro Manila & Highly Urbanized Cities:** Units with rent up to **₱10,000** per month.
- **In All Other Areas:** Units with rent up to **₱5,000** per month.

Note: "Residential units" include apartments, houses, dormitories, and bed spaces. It does **not** include motels, hotels, or commercial spaces (offices/stores).



2. Rent Increase Rules

If your home is covered by the Act, the landlord must follow these strict limits:

- **How Often:** Rent can only be increased **once a year**.
 - **How Much:** The maximum annual increase is generally capped at **7%** (though the government housing board, DHSUD, may lower this cap depending on the economy).
 - **New Tenants:** If a tenant moves out, the landlord can set **any price** for the next tenant. The 7% cap only applies as long as the same person stays in the unit.
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3. Deposits and Advance Payments

Landlords often ask for several months of payment upfront, but the law limits this:

- **Maximum Advance Rent:** 1 month only.
- **Maximum Security Deposit:** 2 months only.
- **Bank Interest:** The security deposit must be kept in a bank. Any interest it earns belongs to the **tenant** and should be returned when the lease ends.

4. Legal Grounds for Eviction

A landlord **cannot** kick a tenant out just because they want to. Valid reasons for eviction (Judicial Ejectment) include:

1. **Unpaid Rent:** Missing **3 months** of rent.
2. **Subleasing:** Renting out the room to someone else without the owner's written permission.
3. **Owner's Need:** If the owner (or their immediate family) needs to live there. They must give **3 months' notice**.
4. **Repairs:** If the building is condemned or needs major repairs to make it safe.
5. **Contract Expiration:** When the agreed-upon stay period is over.

5. Penalties for Violations

If a landlord ignores these rules (e.g., charging 5 months' deposit or raising rent by 20%), they can face:

- **Fines:** Between ₱25,000 and ₱50,000.
- **Jail Time:** 1 month to 6 months.